

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 4, 2026, AT 8:30 A.M.

2. M-CV-0091212 WELLS FARGO BANK v. FINIGAN, CARLY

The motion for judgment on the pleadings is dropped from calendar in light of defendant's bankruptcy proceedings.

3. M-CV-0094880 CAMPBELL WASHBURN v. FLYING J RANCH

Specially Appearing Defendants Motion to Quash Improper Service of Summons

Preliminary Matters

Defendants' requests for judicial notice are granted.

Ruling on Motion

Defendants move to quash the service of summons on them pursuant to Code of Civil Procedure section 418.10. Notably, defendants contend service was improper because it was accomplished pursuant to Code of Civil Procedure section 415.40 despite defendants being in California.

Where, as here, defendants challenge the "courts personal jurisdiction on the ground of improper service of process[.]" plaintiff bears the burden "to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

Plaintiff does not oppose the motion and thus does not meet its burden to prove the existence of jurisdiction. Even assuming arguendo plaintiff did oppose the motion, the service effectuated here is nonetheless improper because defendants are California residents and have a presence in California.

Accordingly, defendants' motion is granted. The service of summons made on defendants Flying J Ranch, LLC, Shannon B. Jones Law Group, Inc., 300 Diablo, LLC, 300 Diablo II, LLC are hereby quashed.

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